

TENTATIVE RULINGS

DEPT CM2

Judge Andre De La Cruz

Court Reporters: Official court reporters (*i.e.*, court reporters employed by the Court) are not provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#); and
- [Court Reporter Interpreter Services](#).

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website no later than Wednesday afternoon immediately preceding Thursday's hearing. Moreover, tentative rulings may not be posted in every case.

Please do not call the department for tentative rulings if tentative rulings have not been posted.

The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: acarbajal@occourts.org. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (*.doc or *.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

Non-appearances: If nobody appears for a hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal. App. 4th 436, 442 (2012), fn. 1.

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
July 16, 2026

#	Case Name	Tentative
1.	30-2021-01184189 Holcomb vs. Aliso Villas Condominium	Plaintiff Scott Palmer Holcomb moves for an order granting him relief from: (1) the order of May 14, 2026 that granted defendants' motion for attorneys' fees on appeal; and (2) the amended judgment entered on May 29, 2026. Plaintiff contends that he could not respond to the motion for fees because he was recovering from injuries sustained in a motor vehicle accident. Defendants oppose the motion. Plaintiff's authority for the requested relief is subdivision (b) of Code of Civil Procedure section 473. That provision provides in relevant part: The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be

	accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. Plaintiff contends that the motion was granted because it was unopposed and defendants' request for fees was not given sufficient scrutiny. He states that he wishes to oppose the motion and challenge some of the underlying billing submitted by defense counsel, which he contends was not spent on the appeal. In support of his motion, plaintiff offers his own declaration and several exhibits that include a chronology of events relating to his motor vehicle accident and doctors' appointments, doctors' appointment reminders, and a letter from the Department of Veterans Affairs. However, plaintiff never declares that he was too incapacitated to prepare an opposition to the motion or that he contacted defense counsel to ask for a continuance of the hearing on the motion. Nor does he deny receiving the motion. In fact, as defendants point out, plaintiff did not do anything about the motion until after the amended judgment was entered and served. Additionally, plaintiff did not submit a proposed opposition to the motion for attorneys' fees with his moving papers. With their opposition, defendants have submitted the declaration of defense counsel, who declares that, during the same timeframe that plaintiff contends he was incapacitated, he was filing and serving documents in another case that he has with defendants and defense counsel. Defendants rightly contend that these actions belie plaintiff's contentions of incapacity. Accordingly, the motion of plaintiff Scott Palmer Holcomb for an order granting him relief from the order of May 14, 2026 that granted defendants' motion for attorneys' fees on appeal and the amended judgment entered on May 29, 2026 is DENIED.
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		Clerk to give notice.
2.	30-2022-01259915 C.S. v. Doe 1, et al.	Before the Court are four (4) Motions for Reconsideration, one in each related case (Nos. 1259915 (ROA 327); 1259771 (ROA 402); 1259908 (ROA 317); and 1259921 (ROA 344)). The Motions seek reconsideration of the Court’s January 29, 2026, Minute Order, which imposed evidentiary sanctions. <i>See</i> Case Nos. 1259915 (ROA 321); 1259771 (ROA 396); 1259908 (ROA 311); and 1259921 (ROA 338)). Plaintiffs C.S. (“C.S.”); S.K. (“S.K.”); Karen Rose (“Rose”); and M.S. (“M.S.”) (collectively “Plaintiffs”) request that the Court grant their Motions for Reconsideration or in the alternative use its inherent authority to amend its ruling. ROAs 327, 351. I. Motion for Reconsideration Under California Code of Civil Procedure Section 1008, a party affected by a Court’s order “may, within [ten] 10 days after service upon the party of written notice of entry of the order,” move the court to reconsider, modify, or revoke the court’s prior order. Cal. Civ. Proc. Code § 1008(a). The moving party’s application must be accompanied by an affidavit stating “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances or law are claimed to be shown.” Cal. Civ. Proc. Code § 1008(a). Importantly, applicants for reconsideration are subject to a strict standard of diligence in ensuring the new or different facts, circumstances, or law were <i>not known or available</i> at the time of the original application. <i>See Garcia v. Hejmadi</i> 58

	Cal. App. 4th 674, 690(1997). Courts will <i>not</i> consider new or different facts, circumstances, or law presented at application for reconsideration that courts find were available to the applicant at the time of the <i>original application</i> in controversy. <i>See id.</i> (finding that the applicant failed to meet the requirements of Section 1008 by presenting facts on reconsideration that were available at the time of the original application, without offering any justification for its failure to present them earlier). Plaintiffs argue reconsideration is warranted because they have now submitted supplemental declarations that cure the deficiencies identified by the Court in its prior order. ROAs 327, 351. Plaintiffs contend these revised declarations constitute a new or different circumstance under California Code of Civil Procedure Section 1008 because the declarations provide the detailed information the Court found lacking and bear directly on the basis for the Court's imposition of evidentiary sanctions. <i>Id.</i> The Court is not persuaded by Plaintiffs' arguments. Plaintiffs identify no genuinely new or different facts, circumstances, or law that could not, through the exercise of reasonable diligence, have been presented at the time of the original motion. Rather, Plaintiffs' motion presents a renewed argument based on facts and circumstances that were previously available yet withheld. Plaintiffs cannot satisfy the requirements of Code of Civil Procedure section 1008 by simply curing deficiencies in their prior submissions and presenting the corrected information as new facts or circumstances warranting reconsideration. The remainder of Plaintiffs' arguments do not identify any new or different facts, circumstances, or law. Instead, Plaintiffs' arguments challenge the merits of the Court's prior ruling and seek to relitigate issues that were previously considered. Such arguments do not provide a proper basis for reconsideration under section 1008. Accordingly, Plaintiffs' Motions for Reconsideration pursuant to California Code of Civil Procedure Section 1008 are DENIED.
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		II. Court's Inherent Authority The Court retains the inherent authority to change its decision at any time prior to the entry of judgment. <i>Darling, Hall & Rae v. Kritt</i>, 75 Cal. App. 4th 1148, 1157 (1999), as modified on denial of reh'g (Oct. 26, 1999). The only requirement of the court is that it exercise "due consideration" before modifying, amending, or revoking its prior orders. <i>Kritt, supra</i>, 75 Cal. App. 4th at 1157. Upon further due consideration of the scope of the evidentiary sanctions previously imposed, the Court finds that Sanction No. 2, which provided that "Plaintiffs are precluded from asserting that they reported Sellars' alleged sexual misconduct to others, including Terri Sellars," was broader than necessary to remedy the discovery violation at issue. Accordingly, the Court exercises its inherent authority to modify Sanction No. 2 as follows: "Plaintiffs are precluded from introducing <i>documents</i> concerning reports of Sellars' alleged sexual misconduct to others, including Terri Sellars, that were not produced in discovery." The remainder of the sanctions order remains unchanged. Clerk to give notice.
5.	30-2023-01366408 Wooden vs. National Community Renaissance; A California Nonprofit Housing Corporation	Before the Court are the following three (3) motions brought by Defendants National Community Renaissance; Arbor Villas Apartments, LLC; and Elizabeth Becerril (collectively, "Defendants") against Plaintiff Linda Wooden ("Plaintiff"): a Motion to Compel Further Responses to Special Interrogatories ("MF-SROG"), Set One; a Motion to Compel Further Responses to Form Interrogatories ("MF-FROG"), Set One; and a Motion to Compel Further Responses to Requests for Production ("MF-RFP"), Set One. ROAs 133, 139, 145. In the underlying controversy, Plaintiff alleges Defendants breached the parties' lease agreement. ROA 122, ¶ 4. Plaintiff also brings causes of action against Defendants for breach of quiet enjoyment, personal injuries to a non-party, negligence, defamation, and discrimination. <i>Id.</i>

	Defendants seek an order, pursuant to California Code of Civil Procedure Sections 2030.010 and 2030.290, compelling Plaintiff to serve further, verified, code compliant responses to Defendant's Special Interrogatories ("SROG"), Set One, and Form Interrogatories ("FROG"), Set One. ROA 133, p.2; ROA 139, p.2. Defendants also seek an order, pursuant to California Code of Civil Procedure Section 2031.310, compelling Plaintiff to serve further, verified, code compliant responses to Defendants' Request for Production ("RFP"), Set One, without objections. ROA 145, p.2. I. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Requests The meet and confer requirement is intended to promote the public policy of judicial economy and to encourage the informal resolution of discovery disputes. <i>Townsend v. Super. Ct.</i>, 61 Cal. App. 4th 1431, 1434-35 (1998) (<i>citing DeBlase v. Super. Ct.</i>, 41 Cal. App. 4th 1279, 1284 (1996)); <i>see</i> Cal. Civ. Proc. Code 2023.010(i) (failing to meet and confer, or failing to make an attempt to meet and confer, either in person, by phone, or by videoconference, is subject to sanctions when a meet and confer declaration is required by statute). Parties' obligation to meet and confer under the California Code of Civil Procedure arises only after responses are contested or upon a motion for a protective order. Cal. Civ. Proc. Code §§ 2025.420(b), 2025.450(b)(2), 2030.090(a), 2030.300(b)(1), 2031.060(a), 2031.310(b)(2), 2033.080(a), 2033.290(b)(1). Both statute and case law demand a reasonable, good faith effort by the moving party to meet and confer before submitting a motion to compel further responses. Cal. Civ. Proc. Code §§ 2016.040 ("[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt . . . to informally resolve each issue presented by the motion."), 2030.300(b), 2031.310(b)(2), 2033.290(b)(1); <i>In re Marriage of Moore</i>, 102 Cal. App. 5th
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	1275, 1298-99 (2024) (“in order to bring a motion to compel discovery, the propounding party must first engage in reasonable and good faith attempts at informal resolution . . .”). Effective January 1, 2026, Section 2016.040 demands that a meet and confer declaration “<i>shall</i> state facts showing a reasonable and good faith attempt” on the part of the moving party to meet and confer either <i>in person</i>, <i>telephonically</i>, or by <i>videoconference</i>; e-mail alone will <i>not</i> suffice. Cal. Civ. Proc. Code § 2016.040(a) (emphasis added). Additionally, the moving party’s declaration “shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b). The Court finds that Defendants’ declarations in support of the herein motions do not state facts that satisfy the statutory requirement that the moving party attempt to meet and confer regarding the retention of a certified shorthand reporter as required. <i>See</i> ROA 133, Decl. of Patino; ROA 139, Decl. of Patino; ROA 145, Decl. of Patino. Because Defendants have not satisfied the statutory requirements of California Code of Civil Procedure Section 2016.040(b), Defendants’ motions are procedurally defective and therefore DENIED. II. Sanctions re: Motions to Compel Further Responses to Discovery Requests The Civil Discovery Act provides that courts <i>shall</i> impose a monetary sanction . . . against any party . . . who unsuccessfully makes or opposes a motion to compel further response[s] . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(d), 2033.290(d).
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	““Whenever one party's improper actions—even if not “willful” —in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.”” <i>Ellis v. Toshiba Am. Info. Sys. Inc.</i>, 218 Cal. App. 4th 853, 878 (2013) (quoting <i>Clement v. Alegre</i>, 177 Cal. App. 4th 1277, 1286-1287 (2009)). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, the Court finds no substantial justification for Defendants’ failure to satisfy the provisions of California Code of Civil Procedure Section 2016.040(b). However, while the Civil Discovery Act authorizes sanctions for a party's failure to make a good-faith effort to meet and confer in person, by telephone, or by videoconference before seeking court intervention, the Court finds no corresponding provision in Chapter 7 of the Act that renders sanctionable a party's failure to confer regarding the retention of a certified shorthand reporter. <i>See</i> Cal. Civ. Proc. Code § 2023.010(i). Thus, the Court finds that sanctions are not proper. Accordingly, the Court DENIES Defendant’s motions without prejudice. If matters are refiled, this case can bypass the IDC process and set before hearing on this Court’s calendar. The Court orders the Clerk to give notice.
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6.	30-2022-01259771 Rose vs. 1	See #2, above.
7.	30-2022-01259908 K. vs. DOE 1	See #2, above.
8.	30-2026-01549613 Hernandez vs. Bellflower Skilled, LLC	As a preliminary matter, the Court notes that Plaintiff was ordered to file amended motions no later than June 24, 2026. ROA 199. The Court's order warned that the Court would interpret failure to file amended motions as a withdrawal. <i>Id.</i> Here, Plaintiff failed to file amended motions for Register of Actions ("ROA") Nos. 68, 69, and 163. These motions are therefore considered WITHDRAWN. Additionally, Plaintiff's Amended Motion to Compel Further Responses to Special Interrogatories ("MF-SROG"), Set One, served upon Defendant Bellflower Skilled, LLC ("Bellflower"), was not timely filed as previously ordered. <i>See</i> ROA 223. Therefore, ROA 142 is also considered WITHDRAWN. Pursuant to the foregoing, before the Court are the following three (3) motions brought by Plaintiff Maria Elena Hernandez ("Plaintiff"): one MF-SROG, Set One, brought against Defendant Sun Mar Management Services ("Sun Mar"); and two (2) Motions to Compel Further Responses to Requests for Production ("MF-PROD"), Set One, one against Defendant Sun Meridian Management Services ("Meridian") and one against Sun Mar. ROAs 215,

		217, 219. The underlying controversy involves claims of elder abuse and negligence. ROA 2. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010, 2023.020, 2030.250, and 2030.290, compelling Sun Mar to provide further, verified, code compliant responses to Plaintiff's Special Interrogatories ("SROG"), Set One, Nos. 3-5, within ten (10) days of receiving notice of the Court's order. ROA 215, p.2. Plaintiff also seeks monetary discovery sanctions upon Sun Mar in the amount of \$2,500.00, payable to Garcia and Coman, for the costs associated with bringing Plaintiff's MF-SROG, Set One, against Sun Mar. <i>Id.</i> Additionally, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010, 2023.020, 2031.280, and 2033.290, compelling Meridian to provide further, verified, code compliant responses to Plaintiff's Request for Production ("PROD"), Set One, No. 114 within ten (10) days of receipt of notice of the Court's order. ROA 219, pp. 2, 5-6. Additionally, Plaintiff seeks monetary discovery sanctions upon Meridian in the amount of \$2,500.00, for the costs associated with bringing their MF-PROD, Set One, against Meridian. ROA 219, p.2. Lastly, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010, 2023.020, 2031.280, and 2033.290, compelling Sun Mar to provide further, verified, code compliant responses to Plaintiff's Request for Production ("PROD"), Set One, Nos. 2-3, within ten (10) days of receipt of notice of the Court's order. ROA 217, pp. 2, 5-6. Additionally, Plaintiff seeks monetary discovery sanctions upon Sun Mar in the amount of \$2,500.00, for the costs associated with bringing their MF-PROD, Set One against Sun Mar. ROA 217, p.2. In total, Plaintiff seeks \$7,500.00 in monetary discovery sanctions. Defendant does not seek sanctions and requests that the Court deny Plaintiff's motions in their entirety. <i>See</i> ROAs
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	233, 231, 229, 227, 225. I. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Requests The meet and confer requirement is intended to promote the public policy of judicial economy and to encourage the informal resolution of discovery disputes. <i>Townsend v. Super. Ct.</i>, 61 Cal. App. 4th 1431, 1434-35 (1998) (citing <i>DeBlase v. Super. Ct.</i>, 41 Cal. App. 4th 1279, 1284 (1996)); see Cal. Civ. Proc. Code 2023.010(i) (failing to meet and confer, or failing to make an attempt to meet and confer, either in person, by phone, or by videoconference, is subject to sanctions when a meet and confer declaration is required by statute). Parties’ obligation to meet and confer under the California Code of Civil Procedure arises only after responses are contested or upon a motion for a protective order. Cal. Civ. Proc. Code §§ 2030.090(a), 2030.300(b)(1), 2031.060(a), 2031.310(b)(2). Both statute and case law demand a reasonable, good faith effort by the moving party to meet and confer before submitting a motion to compel further responses. Cal. Civ. Proc. Code § 2016.040 (“[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt . . . to informally resolve each issue presented by the motion.”), 2030.300(b), 2031.310(b)(2); <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1298-99 (2024) (“in order to bring a motion to compel discovery, the propounding party must first engage in reasonable and good faith attempts at informal resolution . . .”). Effective January 1, 2026, Section 2016.040 demands that a meet and confer declaration “shall state facts showing a reasonable and good faith attempt” on the part of the moving party to meet and confer either <i>in person</i>, <i>telephonically</i>, or by <i>videoconference</i>; e-mail alone will <i>not</i> suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party’s declaration “shall include whether [they have] met and conferred, including through an electronic
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		communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b). The Court finds that Plaintiff’s Declarations in support of the herein motions do not state facts sufficient to satisfy the statutory requirement that the moving party attempt to meet and confer regarding the retention of a certified shorthand reporter. <i>See</i> ROAs 215, 217, 219, Decl. of Garcia. Consequently, Plaintiff’s remaining motions are DENIED on procedural grounds. II. Sanctions re: Motions to Compel Further Responses to Discovery Requests The Civil Discovery Act provides that courts <i>shall</i> impose a monetary sanction . . . against any party . . . who unsuccessfully makes or opposes a motion to compel further response[s] . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(d). “Whenever one party's improper actions—even if not “willful”—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.” <i>Ellis v. Toshiba Am. Info. Sys. Inc.</i>, 218 Cal. App. 4th 853, 878 (2013) (quoting <i>Clement v. Alegre</i>, 177 Cal. App. 4th 1277, 1286-1287 (2009)). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, the Court finds no substantial justification for Plaintiff’s failure to satisfy the provisions of California Code of Civil Procedure Section 2016.040(b). However,
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		while the Civil Discovery Act authorizes sanctions for a party's failure to make a good-faith effort to meet and confer in person, by telephone, or by videoconference before seeking court intervention, the Court finds no corresponding provision in Chapter 7 of the Act that renders sanctionable a party's failure to confer regarding the retention of a certified shorthand reporter. <i>See</i> Cal. Civ. Proc. Code § 2023.010(i). Additionally, Defendants do not seek sanctions and have therefore not placed Plaintiff on notice of the potential imposition of sanctions. Thus, the Court finds that sanctions against Plaintiff are not proper. Accordingly, the Court DENIES Plaintiff's motions (ROA 215, 217, 219). The Court orders the Clerk to give notice.
9.	30-2022-01259921 S. vs. DOE 1	See #2, above.
10.	30-2023-01330408 U.S. Bank National Association vs. Pacific Life Insurance Company	Before the Court is one Motion to Compel Deposition, and Sanctions, brought by Plaintiff and Cross-Defendant U.S. Bank National Association ("Plaintiff") against Defendant and Cross-Complainant Pacific Life Insurance Company ("Defendant"). ROA 361. On July 9, 2025, the Court heard oral argument from both parties in open court. Importantly, the parties stipulated that Defendant's objections to Plaintiff's notice of deposition were timely served in accordance with their mutual agreement to extend Defendant's deadline to file either objections or a Motion to Quash. The Court's original tentative ruling found, on the record before the Court, that Defendant's objections were not timely served and were therefore waived. Pursuant to the foregoing, the Court will

	proceed to address the merits of Defendant’s objections to Plaintiff’s Notice of Deposition only. The underlying controversy concerns the payment of death benefits under a life insurance policy. The action involves claims of breach of contract, breach of the covenant of good faith and fair dealing, promissory estoppel, and unjust enrichment, as well as counterclaims that the underlying policy is void under Delaware law. ROA 361, p.7. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2025.450, compelling Defendant, within six (6) days of a ruling on this motion, to produce its persons most qualified (“PMQ”) to testify on the topics specified in Plaintiff’s Notice of Deposition served on Defendant on March 6, 2026. ROA 361, p.2 Additionally, Plaintiff seeks an order imposing monetary discovery sanctions upon Defendant in the amount of \$14,944.50. ROA 609, Decl. of Nogues, ¶ 8. Defendant requests that the Court deny Plaintiff’s motion. ROA 511, p.15. Service of Deposition Notice A “plaintiff may serve a deposition notice without leave of court on any date that is 20 days after the service of the summons on, or appearance by, any defendant.” Cal. Civ. Proc. Code § 2025.210(b). A court may grant a plaintiff leave to serve a deposition notice on an earlier date, either on motion or without notice, for good cause shown. <i>Id.</i> Here, summons was served upon Defendant on June 8, 2023. ROA 3. Plaintiff served Defendant with the Notice of Deposition of Defendant’s Advanced Design Unit (“ADU”) PMQ on March 6, 2026. ROA 361, Decl. of Jean Pierre Nogues (“Nogues”), ¶ 12. The 20-day limit imposed by Section 2025.210 is satisfied here. Oral depositions must be scheduled at least ten (10) days after service of the deposition notice, unless shortened or extended by the court for good cause shown. Cal. Civ. Proc. Code 2025.270.
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Here, Plaintiff's notice set the deposition to occur on March 18, 2026, twelve (12) days after service of the deposition notice. ROA 361, Exh. 9, p.59. Thus, the ten (10) day limit imposed by Section 2025.270 is satisfied.

The deposition of an organization may be taken at a place that is *either* within seventy-five (75) miles of the organization's business office *or* anywhere within the county where the action is pending that is also within 150 miles of the organization's business office. Cal. Civ. Proc. Code 2025.250(b). A court may exercise its discretion to permit the deposition of an employee of an organization at a place more distant than that permitted under Section 2025.250, upon motion accompanied by a meet and confer declaration and after considering "any factor tending to show whether the interests of justice will be served" in doing so. Cal. Civ. Proc. Code § 2025.260(a), (b).

Here, Plaintiff's deposition notice scheduled the deposition at Plaintiff's counsel's place of business, 11377 West Olympic Boulevard, Los Angeles, California 90064. ROA 361, Exh. 9, p.59. The Court finds that Plaintiff's deposition notice satisfies the requirements of California Code of Civil Procedure Section 2025.050(b).

A party that is served with a deposition notice that does not comply with the provisions of Section 2025.210, outlined above, waives any error or irregularity unless they serve a written objection specifying the error or irregularity at least three (3) days before the scheduled deposition upon the noticing party and all other parties served with notice of the deposition. Cal. Civ. Proc. Code § 2025.410(a), (b).

Here, the parties stipulated during oral argument to the timeliness of Defendant's objections to Plaintiff's deposition notice. *See supra*.

Pursuant to the foregoing, the Court finds that Plaintiff's deposition was properly noticed and that Defendant has raised timely objections.

Valid Objections to Deposition Notice

		Valid objections to deposition notice must go to error or irregularity of the notice. <i>See</i> Cal. Civ. Proc. Code § 2025.410(a). Serving a code compliant objection to a deposition notice does <i>not</i> automatically stay the deposition absent a motion by the objecting party. <i>See</i> Cal. Civ. Proc. Code § 2025.410(c). A valid objection under Article 2, Chapter 9, of the Civil Discovery Act (outlined <i>supra</i>) that is timely and properly served prevents the ensuing deposition from being used against the objecting party “if the party did not attend and if the court determines that the objection was a valid one.” <i>Id.</i> A deposition may be stayed only upon an objecting party’s motion staying the taking of the deposition or quashing the deposition notice. <i>Id.</i> In this case, objecting party did neither. Here, on March 18, 2026, Defendant served objections to Plaintiff’s notice of deposition. ROA 361, Exh. 10. The Court finds that Defendant fails to raise any valid objections to Plaintiff’s notice of deposition, irrespective of the filing of any motion to quash or motion to stay the taking of the deposition. The Court’s finding does not foreclose the potential for the stated objections to be appropriately raised at the deposition itself. Notably, the only valid objections that the Court considers for Notices of Deposition go to timeliness, location, and service—none of which apply to the instant dispute. Motions to Compel Deposition Under California Code of Civil Procedure Section 2025.450, when a party to the action fails to appear for examination after having received proper deposition notice, and without having served a valid objection under Section 2025.410, the party giving notice may move for an order compelling the deponent’s attendance, testimony, and production of documents. Cal. Civ. Proc. Code § 2025.450(a). All motions to compel a deponent to appear or proceed with deposition, or to produce documents, electronically stored information, or tangible things for inspection must “be accompanied by a meet and confer declaration” that
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	states that the moving party “has contacted the deponent to inquire about the nonappearance” or failure to produce. Cal. Civ. Proc. Code § 2025.450(b)(2). The meet and confer declaration must satisfy the statutory requirements of California Code of Civil Procedure Section 2016.040 only when a party seeks a deponent's <i>further</i> responses to questions posed at deposition. <i>Id.</i> Here, on March 17, 2026, the parties met and conferred regarding Plaintiff’s Notice of Deposition. ROA 361, Decl. of Nogues, ¶ 13. Defendant protested the timing of the deposition on the grounds that it was inconvenient, given the then-pending motion for summary judgment. <i>Id.</i> On April 14, 2026, the parties again met and conferred regarding the Defendant’s ADU PMQ's nonappearance but were unable to resolve the dispute. ROA 361, Decl. of Nogues, ¶ 14. On April 15, 2026, Plaintiff served Defendant with the herein motion. ROA 361, p.81. Pursuant to the foregoing, and because Defendant failed to appear for the properly noticed deposition, the Court finds that Plaintiff has satisfied the less restrictive statutory meet and confer requirement under California Code of Civil Procedure Section 2025.450(b)(2). Rule 3.1345 of the California Rules of Court requires motions to compel answers at deposition to be accompanied by a separate statement. Cal. Rules of Court, rule 3.1345(a). No separate statement is required when: (i) no response has been provided to the discovery request; or (ii) a court has permitted the moving party to submit a concise outline of the discovery request and each response in the dispute instead of a separate statement. Cal. Rules of Ct. rule 3.1345(b). Failure to submit a separate statement is sufficient justification for a court to exercise its discretion to deny a discovery motion. <i>See Mills v. U.S. Bank</i>, 166 Cal. App. 4th 871, 893 (2008). Here, the Court finds that Defendants failed to appear for Plaintiff’s properly noticed depositions without serving
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		valid objections. Because Defendants never responded to questions at the deposition, the Court finds that Plaintiff is not required to submit a separate statement. Pursuant to the foregoing, the Court finds that Plaintiff's motion is proper, that Defendant has not raised any valid objections to the deposition notice, and that the deposition must therefore proceed under Court order. Sanctions re: Motions to Compel Deposition When a court grants a motion to compel under Section 2025.450, the court must impose monetary sanctions in favor of the noticing party and against the deponent, "unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Cal. Civ. Proc. Code § 2025.450(g)(1). The term "substantial justification" means a justification that "is clearly reasonable because it is well grounded in both law and fact." <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, the Court does not find, and Defendant does not offer, any substantial justification for Defendant's failure to either raise legitimate objections to Plaintiff's deposition notice or to appear at Plaintiff's properly noticed deposition. Additionally, the Court finds no facts indicating that imposing monetary sanctions will result in an injustice to the Defendant. Apportioning Sanctions California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on "one engaging in the misuse of the discovery process, or any attorney advising that conduct . . ." or any party who "unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both." Cal. Civ. Proc. Code § 2023.030(a). Courts shall impose monetary sanctions absent a finding "that the one subject to the sanction acted with substantial justification." <i>Id.</i> When the misconduct is clearly attributable to one party,
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		courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) with <i>Kwan Software Eng'g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. See <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where the client refused to submit to x-rays and the attorney's declarations show that the attorney attempted to convince the client to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. See generally <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 256. If the Court finds that both are responsible, sanctions can be imposed jointly and severally. See <i>Cornerstone, supra</i>, 56 Cal. App. 5th 771, 799 (2020). "An attorney may only be penalized . . . for advising disobedience. It is not enough that the attorney's actions were in some way improper and contributed to the disobedience of the court order." <i>Corns, supra</i>, 181 Cal. App.
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		3d at 200; <i>see Ghanooni, supra</i>, 20 Cal. App. 4th at 261. Illustrating this point, the <i>Ghanooni</i> court reversed a lower court's order imposing sanctions on both the client and the attorney and instead ordered sanctions only against the client. <i>Id.</i> The court found that counsel's mere opposition to a motion to compel X-rays from their client did not give rise to an inference that counsel advised disobedience in the first instance, where the client's refusal was attributable to their generalized fear of exposure to radiation, which is not sufficient justification to refuse a motion to compel. <i>Id.</i>; <i>see Kwan, supra</i>, 58 Cal. App. 5th at 83. Here, in light of the multitude of invalid objections to Plaintiff's deposition notice offered by Defendant's counsel, the Court is persuaded that Defendant's counsel likely instructed Defendant not to appear at Plaintiff's properly noticed deposition. <i>See</i> ROA 361, Decl. of Nogues, ¶ 13. However, because Plaintiff's motion does not place Defendant's counsel on notice of the potential imposition of sanctions for discovery misuse, to impose sanctions upon Defendant's counsel would violate due process. <i>See</i> Cal. Civ. Proc. Code § 2023.030 (requiring that any "party, person, or attorney" upon whom a court imposes sanctions for misuse of the discovery process first be provided with notice). Thus, the Court elects to withhold a determination as to the liability for sanctions until such time as the Court can consider evidence as to which party, Defendant or Defendant's counsel, is at fault. Determining a Reasonable Sanctions Amount Three principles govern the award and amount of attorney's fees and costs imposed as a discovery sanction. <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 790 (compulsion, causation, and reasonableness). Additionally, California Code of Civil Procedure Section 2023.040 requires a motion requesting sanctions to be accompanied by "a declaration setting forth facts supporting the amount of any monetary sanction sought." Cal. Civ. Proc. Code § 2023.040. "The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." <i>Cornerstone</i>,
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		<i>supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i> (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added). Pursuant to the foregoing, and after having considered Plaintiff’s counsel’s declaration concerning attorney’s fees and costs associated with bringing the instant motions, the Court finds that Plaintiff’s counsel is entitled to monetary discovery sanctions in the amount of \$13,619.50. Ruling Accordingly, the Court issues the following orders: The Court GRANTS Plaintiff’s Motion to Compel Deposition (361) and ORDERS Defendant to produce its Advanced Designs Unit Person Most Qualified for deposition by July 30, 2026. Additionally, the Court ORDERS Defendant and Defendant’s counsel of record to appear and Show Cause re: Liability for \$13,619.50 in monetary discovery sanctions, at 9:00 a.m. in this Department on July 23, 2026. Plaintiff shall give notice.
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